

May 28, 2019



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20891

EXPIRATION DATE: 2021-04-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Environmental Protection Agency Region 7
Lexana, KS
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the transportation in commerce of non-radioactive hazardous materials to staging areas within 200 miles of the point of origin by persons conducting operations under the direction of and under alternative safety requirements imposed by the grantee to this special permit within the Nebraska and Iowa disaster areas. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.

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4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Parts 171 through 180 are waived, except as specified herein.
5. BASIS: This special permit is based on the application of the Environmental Protection Agency, Region 7 dated May 23, 2019, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant injury to persons or property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Non-radioactive hazardous materials	Class 1, 2, 3, 4, 5, 6, 8, 9	As appropriate	As appropriate

7. SAFETY CONTROL MEASURES:
- a. Compliance with the HMR is required to the extent practicable. Persons conducting operations under the direction of the grantee to this special permit within the Nebraska and Iowa disaster areas are authorized to offer and transport non-radioactive hazardous materials under alternative safety requirements imposed by the grantee to this special permit when compliance with the HMR is not practicable.
- b. The non-radioactive hazardous materials identified in paragraph 6. may be transported to staging areas within 200 miles of the point of origin. Further transportation of the hazardous materials from the staging areas must be in full compliance with the HMR.
8. SPECIAL PROVISIONS: This special permit covers all areas identified in the Emergency Declarations Waiver, Emergency Waiver Order No. 13, for the Nebraska and Iowa Disaster Areas.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS:

- a. A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
- b. The shipper must provide written notification to the carrier of the hazardous material and packagings being offered, at the time the shipment is initiated.
- c. Bulk transportation of hazardous materials by rail freight is not authorized under this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: HERZOG